Superior Court of the State of California
County of Orange

Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine

Hearing Date and Time: June 4, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: **Civil Court Reporter Pooling**. For additional information regarding court reporter availability, please visit the court's website at **Court Reporter Interpreter Services**.

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.**

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at **https://www.occourts.org/media-relations/aci.html**. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at **https://www.occourts.org/media-relations/aci.html**. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	***MacGregor-Name Change*** *2025-01480873*	Before the court is the motion of petitioner Alexander Michael MacGregor (Petitioner) to enter omitted order (form NC-130). The motion is **DENIED** and the court sets an **ORDER TO SHOW CAUSE HEARING for August 6, 2026, at 2:00 p.m., in Department C23**, as to why the order previously issued on August 21, 2025, should not be stricken and a new order issued that does not include the language added at section 14 but otherwise grants the original petition. Given the file in this matter is sealed, the court's posted tentative ruling will not go into detail on the basis for the court's tentative ruling, but the ruling is as set forth above because no authority has been presented that would authorize the issuance of two separate orders that would authorize two separate legal identities for the same person. The court acknowledges the stated purpose for the request, but the court has not been convinced the request is one that can be legally granted.
2.	***Osher Investments, LLC vs. Hodson*** *2024-01404420*	Before the court is the motion of plaintiff and judgment creditor Osher Investments, LLC (Osher) to compel defendant and judgment debtor William "Bill" Hodson (Hodson) to respond to Osher's request for production of documents (set one). No Opposition has been received

		from Hodson. As more fully set forth below, the motion is **GRANTED**. The motion demonstrates the requests for production were served on Hodson on October 23, 2025. (Valinoti Decl., ¶ 9.) Hodson failed to provide a response to the requests and failed to produce the requested categories of documents. (*Id*. at ¶¶ 10-15, 30.) The requested relief therefore is warranted here under Code of Civil Procedure sections 708.030 and 2031.300. The motion therefore is **GRANTED**. Hodson is ordered to provide verified, code-compliant responses to the requests, without objection, and produce all responsive documents, within 20 days after service of notice of this ruling. Osher's request for sanctions also is **GRANTED**, in the reduced sum of $2,440. (Code Civ. Proc., §§ 708.030, subd. (c); 2031.300, subd. (c).) Hodson is ordered to pay these monetary sanctions to Osher, through its counsel of record, within 30 days after service of notice of this ruling. Counsel for Osher is ordered to give notice of this ruling.
3.	***Khaytovich vs. Locascio*** *2022-01239428*	**OFF CALENDAR** based on notice of withdraw filed on March 23, 2026.
4.	***Xiong v. Jeunesse Global, LLC*** *2019-01095448*	Following the remittitur issued by the Court of Appeal, this case has been assigned to Judge Layne H. Melzer in Department CX102 for all purposes as stated in the May 27, 2026 minute order. The parties should contact that department to confirm or schedule any pending hearings.
5.	***Jessica Hernandez vs. AMCP Holdings*** *2025-01475407*	Before the court is the continued hearing on the order to show cause on application for entry of order of sale regarding 17391 Breda Lane, Huntington Beach, California 92649. As more fully set forth below, this matter is **CONTINUED TO THURSDAY, AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23**, for all the related family law issues to be resolved. This matter was last heard by the court on January 29, 2026. At that time, the matter was continued to today's date based on a pending dissolution of marriage matter involving judgment debtor Chris Pitts (case no. 19D008195) and ownership to the property that is the subject of the order to show cause. According to a prior report by judgment creditor 1st Integrity Capital of America LLC (Creditor), the judge in the family law case ordered

		ownership of the property must be resolved in the family law proceedings before any sale may be ordered. Trial in the family law case was set for May 5, 2025. It appears the trial began on that date, but the court continued it to June 30, 2026, for more information about the property at issue on this order to show cause. Accordingly, this hearing is **CONTINUED** as set forth above to allow the family law court to resolve all issues regarding ownership of the property so this court can determine whether it may properly order the sale of the property. Creditor is ordered to give notice of this ruling.
6.	***In the Matter of the Assumption of Law Practice of Carlos F. Negrete*** *2016-00836353*	Before the court is the third motion by petitioner State Bar of California (Petitioner) to "Terminate Jurisdiction Over Carlos F. Negrete's Unauthorized Law Practice." The two prior motions were denied without prejudice due to Petitioner's failure to present sufficient evidence to show Petitioner adequately complied with and carried out the court's March 2, 2016 order authorizing Petitioner to assume jurisdiction over Mr. Negrete's law practice. Before denying those prior motions, the court granted Petitioner continuances to present sufficient evidence to show how Petitioner properly carried out the March 2, 2016 order, but Petitioner failed to present sufficient evidence in each instance. Initially, the court also must note Petitioner did not assume jurisdiction over Mr. Negrete's law practice because he was engaged in the unauthorized practice of law as suggested in the title of the current motion. As the court previously noted (see August 14, 2025 Minute Order), Petitioner assumed jurisdiction over Mr. Negrete's law practice pursuant to Business and Professions Code section 6190, et seq., which authorizes the assumption of an attorney's law practice "when an attorney engaged in the practice of law in this state has, for any reason, including but not limited to excessive use of alcohol or drugs, physical or mental illness, or other infirmity or other cause, become incapable of devoting the time and attention to, and providing the quality of service for, his or her law practice which is necessary to protect the interest of a client if there is an unfinished client matter for which no other active licensee of the State Bar, with the consent of the client, has agreed to assume responsibility." Petitioner's application to assume jurisdiction was supported by, inter alia, a declaration from Mr. Negrete explaining he had suffered a number of health issues that prevented him from continuing

		with his practice, and he was forced to move to South Carolina to receive treatment. He stated he consented to the seizure of his law practice, and he explained the efforts he had undertaken to try to wind it down and transfer open cases. With the current motion, Petitioner has made its strongest and most complete showing, and has convinced the court it has collected all the information it reasonably can relating to its performance of its duties and responsibilities under the court's March 2, 2016 order authorizing Petitioner to assume jurisdiction over Mr. Negrete's law practice. Although Petitioner has established it completed several of the tasks it was ordered to do, Petitioner also has demonstrated it is unable to confirm whether it performed all the tasks it was directed to perform pursuant to the court's order. Nonetheless, it is clear the law practice has been wound down and Petitioner has not heard from any former clients of Mr. Negrete for a considerable period of time. As such, the court is inclined to grant the petition, but before doing so, the court must hear from certain decision makers with Petitioner as to Petitioner's compliance with the court's order in this case and what policies and procedures can be implemented to improve such performance in future cases. Accordingly, the hearing on this motion is **CONTINUED TO THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23**. The court orders either Deputy Chief Trial Counsel Christopher G. Jagard or Assistant Chief Trial Counsel Cindy Chan to appear at the continued hearing (remote appearance is acceptable). Prior to the hearing, the attorney appearing at the hearing is ordered to review the court's March 2, 2016 order authorizing the assumption of jurisdiction over Mr. Negrete's practice and the motions and all supporting papers Petitioner filed on or about September 4, 2024, June 4, 2025, and May 8, 2026. Counsel should be prepared to discuss Petitioner's performance under the March 2, 2016 order in light of the information provided in the above-referenced motion. Petitioner is ordered to give notice of this ruling.
7	***Park vs. Miyamoto*** *2023-01364050*	Before the court is a motion filed by plaintiff Christine Park (Plaintiff) to strike and/or tax costs of defendants Steven A. Miyamoto, DDS and Fullerton Oral & Maxillofacial Surgery (collectively, Defendants). As set forth below, the motion is **GRANTED IN PART** and **DENIED IN PART**, and

Defendants are awarded total costs in the sum of $17,711.94 with the balance sought stricken.

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show they were not reasonable or necessary. (*Foothill-De Anza Comm. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 773-74.) The party challenging costs does not meet this burden by arguing the costs were not necessary or reasonable, but must present evidence and prove the costs are not recoverable. (*Seever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557; see also *Wagner Farms*, *supra*, 145 Cal.App.4th at pp. 777-78.)

If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show the charges were reasonable and necessary. (*Foothill-De Anza Comm. College Dist.*, *supra*, 158 Cal.App.4th at p. 29.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the court to determine. (*Id*. at pp. 29-30.)

<u>Item No. 1: Filing and Motion Fees</u>: Filing and motion fees are specifically allowed as costs under Code of Civil Procedure section 1033.5, subdivision (a)(1). Plaintiff failed to show the challenged costs were not reasonable or necessary. Plaintiff cites no authority showing these costs should not be recoverable because Defendants did not prevail on the motions and because Defendants were apparently unwilling to discuss settlement at the Mandatory Settlement Conference. Simply because a party did not prevail on a motion does not mean it was unnecessary. Further, Defendants were ordered to file a Mandatory Settlement Conference statement in advance of the Mandatory Settlement Conference. (See ROA 26.)

The motion as to these items is **DENIED**.

<u>Item No. 4: Deposition Costs</u>: Deposition costs are specifically allowed as costs under Code of Civil Procedure section 1033.5, subdivision (a)(3). Considering the allegations in the complaint pertaining to Plaintiff's shingles

		infection, it is not clearly shown the challenged item was not reasonable or necessary. The motion as to this item is **DENIED**. *Item No. 5: Service of Process:* Costs for service of process are specifically allowable under Code of Civil Procedure section 1033.5, subdivision (a)(4). In the opposition, Defendants explained the two service of process costs are related to serving a deposition subpoena on Plaintiff's subsequent treater, Sung Im, M.D. Defendants state the address provided by Plaintiff for Sung Im, M.D. was no longer an accurate address and thus Defendants made several attempts to locate and serve Sung Im, M.D. The service of process on Kyongbin Im, M.D. was the result of one of Defendants' failed attempts to locate Sung Im, M.D. Plaintiff failed to show the costs claimed were not reasonable or necessary. The motion as to these items is **DENIED**. *Item No. 8: Expert Witness Fees:* Plaintiff contends $23,735 for postoffer expert witness fees should be stricken because Defendants' statutory offers to compromise pursuant to Code of Civil Procedure section 998 (998 Offer) had no reasonable prospect of acceptance. (See Code Civ. Proc., § 998(c)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:598, citing *Santantonio v. Westinghouse Broadcasting Co., Inc.* (1994) 25 Cal.App.4th 102, 116; see also *Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821; *Arno v. Helinet Corp.* (2005) 130 Cal.App.4th 1019, 1024.) For award of expert witness fees and costs under § 998(c), a pretrial offer must be realistically reasonable in the circumstances of the particular case. It must carry with it some reasonable prospect of acceptance. Normally, a token or nominal offer will not satisfy this good faith requirement unless it is absolutely clear that no reasonable possibility exists that the defendant will be held liable. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:707 citing *Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821; *Arno v. Helinet Corp.* (2005) 130 Cal.App.4th 1019, 1024.) If defendant prevails at trial, that fact constitutes prima facie evidence that the offer was reasonable. The burden is therefore on the offeree to prove the offer was in bad faith. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:710 citing *Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 458;

		Licudine v. Cedars-Sinai Med. Ctr. (2019) 30 Cal.App.5th 918, 926; *Najah v. Scottsdale Ins. Co.* (2014) 230 Cal.App.4th 125, 143-144.) Whether a section 998 offer is in "good faith" must be determined under the circumstances of the particular case. The trial court's determination will not be reversed on appeal except for clear abuse of discretion. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:711, citing *Arno v. Helinet Corp.*, *supra*, 130 Cal.App.4th at p. 1024; *Clark v. Optical Coating Lab., Inc.* (2008) 165 Cal.App.4th 150, 185; *Najah v. Scottsdale Ins. Co.* (2014) 230 Cal.App.4th 125, 144.) The reasonableness of an offer is determined by evaluating (1) "'whether the offer represents a reasonable prediction of the amount of money, if any, defendant would have to pay plaintiff following a trial, discounted by an appropriate factor for receipt of money by plaintiff before trial, all premised upon information that was known or reasonably should have been known to the defendant'"; and (2) "'whether [plaintiff's] information was known or reasonably should have been known to [defendant].'" (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:712 quoting *Whatley-Miller v. Cooper* (2013) 212 Cal.App.4th 1103, 1112-1113.) Here, given Defendants had lost on summary judgment based on the court's determination triable issues of material fact existed, Plaintiff had an expert to support her positions as shown in Plaintiff's opposition to Defendants' motion for summary judgment (attached as Exhibit M to Defendants' opposition to the instant motion), and this case involved complex legal and medical issues as Defendants assert, an offer for waiver of costs was not realistically reasonable under the circumstances of this case. The motion as to this item is **GRANTED** and this item of costs shall be stricken. *<u>Item No. 11: Court Reporter Fees as Established by Statute</u>:* Plaintiff contends $12,928.25 in court reporter fees should be stricken because, prior to trial, the parties agreed to split the costs of the court reporter for trial. (See Sirey Decl., ¶ 12.) Defendants do not dispute the existence of the parties' agreement to split the cost of the court reporter. Defendants failed to offer any evidence showing the agreement "merely governed the administrative allocation of payment at the time the expense was incurred" as Defendants claim. The court thus will enforce the parties' agreement to split the cost of the court reporter

		and tax these costs. (See *Anthony v. Li* (2020) 47 Cal.App.5th 816, 824-825 ["'if the parties wanted to allow recovery of the apportioned fee [by] the prevailing party as an item of cost, they were free to spell this out in their agreement,' but such a provision will not be read into the agreement"].) The motion as to this item is **GRANTED** and this item of costs shall be stricken. *<u>Item No. 12: Models, Enlargements, and Photocopies of Exhibits</u>:* Plaintiff contends it is unclear from Defendants' Memorandum of Costs whether the $1,960.95 in claimed costs are for exhibits actually used at trial. (See Code Civ. Proc., § 1033.5, subd. (a)(13).) The opposition shows the costs claimed are for models, exhibits, or enlargements used at trial. (See Opp. at p.10:11-14 and Ex. Q.) Plaintiff did not specifically address this item in the reply and thus appears to concede the charges are proper. The motion as to this item is **DENIED**. Based on the foregoing, the motion is **GRANTED** as to $23,735 for post-offer expert witness fees and $12,928.25 in court reporter fees, and thereto a total of $36,663.25 is stricken from the memorandum of costs, which means $17,711.94 of the $54,375.19 sought in the memorandum of costs is awarded to Defendants. Counsel for Plaintiff shall give notice of this ruling.
8.	***Health and Wellness Lifestyle Club, LLC. vs. Valentine*** *2023-01358654*	Before the court is the motion to tax costs on appeal filed by petitioner Health and Wellness Lifestyle Club, LLC (Petitioner) directed to certain costs claimed in the memorandum of costs on appeal filed by respondent Grove Point Investments, LLC (Respondent). As more fully set forth below, the motion is **GRANTED IN PART** and **DENIED IN PART**. By this motion Petitioner challenges item nos. 1, 2, 4, and 6 sought in Respondent's memorandum of costs. A valid costs memorandum establishes a prima facie case for recovery. Thus, the burden is on the party moving to strike or tax costs to establish that each disputed item is not recoverable. (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see *Ladas v. California State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) Indeed, there is no requirement that copies of bills, invoices, statements or any other such documents be attached to the memorandum. Documentation must be submitted only when a party dissatisfied with the costs claimed in the

		memorandum challenges them by filing a motion to tax costs. (*Bach*, *supra*, 215 Cal.App.3d at p. 308.) *Item 1 (Filing Fees):* Filing fees are an authorized item of costs under California Rules of Court, rule 8.278. Here, the filing fees appear reasons. Prevailing on the motion that gave rise to the filing fee is not the governing standard. The filing fee itself appears reasonable, but the $11.70 credit card processing fee has not been shown to be so. The motion therefore is **GRANTED IN PART** as to the $11.70 credit card processing fee, but otherwise **DENIED**. *Item 2 (Preparation of Original and Copies of Clerk's Transcript or Appendix):* The entire sum paid for the record is recoverable. (*Alan S. v. Superior Court* (2009) 172 Cal.App.4th 238, 261–262.) Petitioner has failed to establish any basis for taxing or striking this item, and Respondent has presented evidence to show the amount sought is the amount paid to the Superior Court for the record. The Motion therefore **DENIED** as to this item. *Item 4 (Printing and Copying of Briefs):* Respondent has failed to show why $200 in delivery fees for delivery to a residence in Miami, or a $30 expedite fee, was reasonable in context here. The costs for printing and copying briefs, however, are otherwise authorized by California Rules of Court, rule 8.278. The Motion therefore is **GRANTED** as to $230 of the charges claimed, but otherwise **DENIED** as to this item. *Item 6 (Transmitting, Filing, and Serving of Record, Briefs, and other Papers):* Plaintiff appears to have conceded on reply that this charge is reasonable, and it appears to be. The motion as to this item is therefore **DENIED**. Based on the foregoing, the motion is **GRANTED IN PART** and **DENIED IN PART** such that $241.70 is stricken from the $2,394.30 Respondent sought and Respondent is awarded the balance of $2,152.60 as recoverable appellate costs. Respondent's counsel is ordered to give notice of this ruling.
9.	***Richey vs. Roberts*** *06CC11271*	Before the court is the motion for charging order and to appoint sheriff with power of sale filed by judgment creditor assignee Robert L. Smith DBA Commercial Judgment Recovery (Creditor). As more fully set forth below, the motion is **DENIED**. Creditor brings the motion pursuant to Code of Civil Procedure sections 708.310 and 708.320, and California

		Corporations Code section 17302. The court first notes Corporations Code section 17302 was repealed on January 1, 2014, and is therefore not applicable. The remaining sections cited by Creditor permit the court to issue a charging order only against a judgment debtor's interest in a limited liability company (LLC). The code sections cited do not permit the court to appoint a sheriff to seize and sell a debtor's interest in an LLC or to sell the assets of a non-debtor/non-party LLC. A motion for a charging order must be served upon all the members of an LLC or the LLC itself. (Code Civ. Proc., § 708.320.) The proof of service only purports to show service on debtor Timoth N. Roberts (Debtor). Creditor has provided no evidence Debtor is a member of the LLC, let alone the sole member of the LLC. The sole California Secretary of State filing Creditor produced is from October 12, 1999, and lists Debtor as the agent for service of process of Victoria Partners, LLC, with the organizer being Gregory N. Weiler. (Smith Decl., Ex. A.) Nothing in this document establishes Debtor is a member of Victoria Partners, LLC, let along the sole member. Moreover, this document is nearly 27 years old and no evidence is presented to show what is reported on this document remains current. If Victoria Partners, LLC is still a viable, going concern, it was required to make periodic filings with the Secretary of State that would be much more current. The evidence presented is not sufficient to show any ownership interest in the LLC, or proper service on the LLC or each of its members. The court also is concerned the motion was not actually served on Debtor. Creditor has not provided any information as to why Debtor was served at 102 E. Oceanfront, Newport Beach, CA 92661. Creditor previously filed a proof of service of an application for renewed judgment on February 5, 2026, which showed service of Debtor at 1909 W Balboa Blvd., Newport Beach, CA 92663. (ROA 166.) A Writ of Execution filed on August 12, 2025, showed Debtor being served at 19368 Mesa Drive, Villa Park, CA 92861. (ROA 153.) The grant deed for the Property states mailings must be sent to 130 McCormick Ave., Ste. 104, Costa Mesa, CA 92626. (Smith Decl., Ex. D.) The inconsistency between the addresses without any explanation raises some concerns Debtor actually was served the Motion. As there is no evidence all the required parties were served, that Debtor has any ownership interest in the subject LLC, and as Creditor has not provided a basis which permits the

		court to allow a sheriff to sell a debtor's interest in an LLC or the assets of a non-debtor/non-party LLC, the Motion is **DENIED**. The court further notes Creditor filed what appears to be an identical motion that is scheduled next week for June 11, 2026. The court orders that motion **OFF CALENDAR** unless Creditor appears at today's hearing to show good cause as to why that motion should not be ordered off calendar as a duplicative filing. Finally, Creditor is ordered to give notice of this ruling.
10.	***Jamboree Center 5 LLC vs. Carlyle Capital Group*** *2025-01498196*	Before the court is the unopposed motion for an award of contractual attorney fees filed by plaintiff Jamboree Center 5 LLC (Plaintiff) against defendants Carlyle Capital Group and Carlyle Capital Fund Inc. (collectively, Defendants). As more fully set further below, the motion is **GRANTED** in the reduced amount of $27,739. Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code § 1717, subd. (a),(b).) Having prevailed at trial on the parties' written lease, dated October 16, 2024, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision in the lease. (Comp., Exh. 1 at § 14.5.) The question becomes whether the $36,179 in attorney fees Plaintiff seeks is reasonable. Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove the hours sought are reasonable and necessary. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) *Hourly rates:* A "reasonable" hourly rate used to calculate the lodestar is the prevailing rate for similar work in the community where the court is located. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 695-696.) Plaintiff seeks attorney hourly rates ranging from $475 to $625, and paralegal hourly rates ranging from $200 to $295. Although Plaintiff produced no evidence of the skill or experience of each of the attorneys and paralegals involved, or the prevailing rates for attorneys in Orange County for unlawful detainer work, based on its experience,

		the court finds the requested hourly rates to be reasonable for the work performed in the Orange County community. The hours are on the high end of the range for reasonable hourly rates, but nonetheless within that range. Defendants filed no opposition objecting to the requested hourly rates. _Time Spent:_ Fee motions should ordinarily be based upon detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, [however,] even in the absence of detailed time records." (*Id*.; see also *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375-76.) The court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (*Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587.) Here, Plaintiff seeks 91.9 total hours, comprising 45.6 hours by four attorneys and 46.3 hours by three paralegals. (Olinik Decl. Ex. 1.) It is unclear why this straightforward matter required the use of four attorneys and three paralegals. Without time records or a more detailed declaration than the somewhat conclusory declaration Plaintiff's counsel provided, the court cannot determine whether the time allegedly spent was duplicative, commensurate with the tasks, or otherwise reasonable. For example, Plaintiff seeks 53.1 hours for "Appearing at Trial and attending to post-trial issues (including reviewing and responding to Tenant's Notice of Appeal and Enforcing Writ of Possession)." No further details are provided and no breakdown as to who performed any of these tasks is provided either. Although there was one trial continuance, the trial itself was completed in a single afternoon with just one attorney appearing on Plaintiff's behalf. Moreover, Plaintiff has engaged in work relating to multiple writs of possession, those are simple court forms that should not require significant amounts of time. Similarly, although Defendants filed a notice of appeal, and the Court of Appeal issued multiple orders before dismissing the appeal based on Defendants' default, there is no indication of any significant work that was required by Plaintiff's attorneys. Moreover, it must be emphasized Plaintiff separately seeks 13 hours for preparing for trial, which means the 53.1 hours does not include any trial prep time. Finally, given the hourly rates are on the high end of the range or

		reasonable fees, the work performed should be more efficient. As noted, Plaintiff has not provided any breakdown which professionals performed what number of hours of this work at what hourly rate. Rather, Plaintiff's counsel simply declares 53.1 hours were spent at $20,940. The court finds 35 hours to be a more reasonable amount and the court values those hours at $12,500. That is a reduction of $8,440. The court otherwise finds the balance of the hours and fees requested to be reasonable. When this $8,440 is deducted from the total of 36,179 that is sought, the result is $27,739. Based on the foregoing, the motion is **GRANTED** and Plaintiff is awarded a total of $27,739 in attorney fees against Defendants. Plaintiff's counsel is ordered to give notice of this ruling.
11.	***Irvine Spectrum Center LLC vs. Scan Fitness, LLC*** *2023-01349243*	Before the court is the unopposed motion for award of contractual attorney fees filed by plaintiff Irvine Spectrum Center LLC (Plaintiff) against defendant Scan Fitness LLC dba Stride (Defendant). As more fully set further below, the motion is **GRANTED** and Plaintiff is awarded the requested amount of $16,472.50. Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code, § 1717, subd. (a), (b).) Having prevailed at trial on the parties' written lease and amendment, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision therein. (Declaration of Ernie Zachary Park (Park Decl.), Exh. 3 at § VI.B; see also Exh. 1.) Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove that the hours sought are reasonable and necessary. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The court finds Plaintiff has shown the hourly rate sought at $275 and number of hours at 58.9 hours are reasonable. (Park Decl. ¶¶ 12, 16, Exh. 5.) Accordingly, the court awards the amount requested at $16,472.50.

		Based on the foregoing, the motion is **GRANTED**, and Plaintiff is awarded $16,472.50 in attorney fees against Defendant. Plaintiff's counsel is ordered to give notice of this ruling.
12.	***EJVE Limited vs. Richard Finger*** *2024-01435614*	Before the court are the following two motions filed by plaintiff and judgment creditor EJVE Limited (Creditor): (1) motion for assignment order; and (2) motion for charging order. As more fully set forth below, the motions are **DENIED WITHOUT PREJUDICE**. **<u>Motion No. 1: Motion for Assignment Order</u>** Creditor moves for an order assigning to Creditor, to the extent necessary to satisfy the judgment entered in this case, the rights of defendant Richard Finger (Debtor) and the community property interests of his alleged spouse Ashley Finger (Ms. Finger) to payments due or to become due from certain sources identified in the notice of motion, pursuant to Code of Civil Procedure section 708.510. As an initial matter, Creditor fails to offer sufficient evidence establishing Debtor and Ms. Finger are married or when they were married. The only evidence Creditor submits to establish the marriage is a copy of what appears to be one page of a rental application which Creditor's counsel, Mr. Sheldon, states was obtained from a subpoena issued to Debtor's landlord. (See Sheldon Decl., ¶ 10 and Ex. H.) Counsel may not properly authenticate that document or establish the necessary foundation. Moreover, the application identifies an "Ashley Finger" under emergency contacts and states the relationship as "wife." (Ex. H.) This unsigned application alone is insufficient to establish Ms. Finger is the spouse of Debtor. It is also unclear whether the "Ashley Finger" identified in the rental application is the same Ashley Finger identified in the Statements of Information produced by Creditor. Creditor offers no discussion showing the individuals are one and the same. Even assuming Ms. Finger and Debtor are married and Ms. Finger is the individual identified in the Statements of Information, there is no argument or evidence showing how Ms. Finger acquired her membership interest in the entities, when she acquired the interests, or when Debtor and Ms. Finger were married. (See Fam. Code, § 760 [community property is all property acquired by a married person during the marriage while domiciled in this state]; § 770 [Property acquired before marriage is the acquiring

		spouse's separate property, as is the "rents, issues, and profits" of said property].) Thus, simply because Debtor and Ms. Finger allegedly are married does not necessarily mean her membership interest in the entities is community property. Much more information is needed and admissible evidence is needed to establish that information. Additionally, with respect to the Statements of Information purportedly showing Debtor's interest in the entities, it is not clearly shown Debtor is the individual named in the Statements of Information, and again they are not sufficiently authenticated and an adequate foundation is not established. (See Exhs. C-E, G, I.) The Statements of Information contain only a name and address. Further, the exhibits list multiple different addresses in different states for the identified individual. Creditor fails to adequately explain how it ascertained Debtor is the individual identified in the exhibits. In addition, all the entities are out-of-state companies. Although the order may be directed to these entities, it is not clear the order will be enforceable against them unless the court can obtain personal jurisdiction against the entities. (See Ahart, Cal. Prac. Guide: Enforcing Judgments and Debts (The Rutter Group 2026) at 6:1435 ["Such orders would be enforceable against a nonresident third person or assignor, however, only if the person were subject to the California court's personal jurisdiction. [See *FirstMerit Bank, N.A. v. Reese* (2015) 242 CA4th 408, 413, 195 CR3d 105, 108—Calif. court could not assign debtor's interest in trust administered in Ohio; *Peterson v. Islamic Republic of Iran* (9th Cir. 2010) 627 F3d 1117, 1130-1132—under Calif. EJL, Iran's rights to payments due from French shipping company were not 'property in the United States' and thus were immune from execution under Foreign Sovereign Immunities Act]"].) Creditor also has not shown a general order assigning to Creditor payment rights from individuals and entities not yet ascertained is appropriate in this case. *Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian* (1990) 218 Cal.App.3d 1058, cited by Creditor, did not deal directly with the issue of whether a blanket order under section 708.510 is appropriate. The case involved the issue of, among other things, whether a foreign government agency was entitled to immunity from execution on its assets located outside the United States. "A case is not authority for a proposition not considered therein or an issue not presented by its own particular facts." (*McConnell v. Advantest America, Inc.* (2023) 92 Cal.App.5th 596, 611.)

		On May 22, 2026, Creditor submitted a supplement to this motion in which it seeks to add an additional entity as a payment source based on information recently received showing Ms. Finger purportedly holds, and/or has signatory authority and control over a Bluevine business checking account maintained in the name of the additional entity. (See ROA 94.) Given Creditor failed to establish Debtor and Ms. Finger are married or when they were married, as discussed above, Creditor also failed to show this new entity should be added as a payment source. Moreover, statements on information and belief are not sufficient to meet Creditor's evidentiary burden. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. **<u>Motion No. 2: Motion for Charging Order</u>** Creditor moves for an order charging Debtor's interest and the interest of his spouse, Ms. Finger, in the same limited liability companies as identified in the motion for assignment order, pursuant to Code of Civil Procedure section 708.310 and Corporations Code section 17705.03. Creditor submitted the same declaration in support of both motions. (See ROA 83 and 88.) The motion for charging order fails for the same reasons discussed above in connection with the motion for assignment order. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. Counsel for Creditor is ordered to give notice of these rulings.
13.	***EJVE Limited vs. Happy Lane, LLC*** *2024-01423726*	Before the court are the following two motions filed by plaintiff and judgment creditor EJVE Limited (Creditor): (1) motion for assignment order; and (2) motion for charging order. As more fully set forth below, the motions are **DENIED WITHOUT PREJUDICE**. **<u>Motion No. 1: Motion for Assignment Order</u>** Creditor moves for an order assigning to Creditor, to the extent necessary to satisfy the judgment entered in this case, the rights of defendant Richard Finger (Debtor) and the community property interests of his alleged spouse Ashley Finger (Ms. Finger) to payments due or to become due from certain sources identified in the notice of motion, pursuant to Code of Civil Procedure section 708.510. As an initial matter, Creditor fails to offer sufficient evidence establishing Debtor and Ms. Finger are married or

		when they were married. The only evidence Creditor submits to establish the marriage is a copy of what appears to be one page of a rental application which Creditor's counsel, Mr. Sheldon, states was obtained from a subpoena issued to Debtor's landlord. (See Sheldon Decl., ¶ 10 and Ex. H.) Counsel may not properly authenticate that document or establish the necessary foundation. Moreover, the application identifies an "Ashley Finger" under emergency contacts and states the relationship as "wife." (Ex. H.) This unsigned application alone is insufficient to establish Ms. Finger is the spouse of Debtor. It is also unclear whether the "Ashley Finger" identified in the rental application is the same Ashley Finger identified in the Statements of Information produced by Creditor. Creditor offers no discussion showing the individuals are one and the same. Even assuming Ms. Finger and Debtor are married and Ms. Finger is the individual identified in the Statements of Information, there is no argument or evidence showing how Ms. Finger acquired her membership interest in the entities, when she acquired the interests, or when Debtor and Ms. Finger were married. (See Fam. Code, § 760 [community property is all property acquired by a married person during the marriage while domiciled in this state]; § 770 [Property acquired before marriage is the acquiring spouse's separate property, as is the "rents, issues, and profits" of said property].) Thus, simply because Debtor and Ms. Finger allegedly are married does not necessarily mean her membership interest in the entities is community property. Much more information is needed and admissible evidence is needed to establish that information. Additionally, with respect to the Statements of Information purportedly showing Debtor's interest in the entities, it is not clearly shown Debtor is the individual named in the Statements of Information, and again they are not sufficiently authenticated and an adequate foundation is not established. (See Exhs. C-E, G, I.) The Statements of Information contain only a name and address. Further, the exhibits list multiple different addresses in different states for the identified individual. Creditor fails to adequately explain how it ascertained Debtor is the individual identified in the exhibits. In addition, all the entities are out-of-state companies. Although the order may be directed to these entities, it is not clear the order will be enforceable against them unless the court can obtain personal jurisdiction against the entities. (See Ahart, Cal. Prac. Guide:

		Enforcing Judgments and Debts (The Rutter Group 2026) at 6:1435 ["Such orders would be enforceable against a nonresident third person or assignor, however, only if the person were subject to the California court's personal jurisdiction. [See *FirstMerit Bank, N.A. v. Reese* (2015) 242 CA4th 408, 413, 195 CR3d 105, 108—Calif. court could not assign debtor's interest in trust administered in Ohio; *Peterson v. Islamic Republic of Iran* (9th Cir. 2010) 627 F3d 1117, 1130-1132—under Calif. EJL, Iran's rights to payments due from French shipping company were not 'property in the United States' and thus were immune from execution under Foreign Sovereign Immunities Act]"].) Creditor also has not shown a general order assigning to Creditor payment rights from individuals and entities not yet ascertained is appropriate in this case. *Philippine Export & Foreign Loan Guarantee Corp. v. Chuidian* (1990) 218 Cal.App.3d 1058, cited by Creditor, did not deal directly with the issue of whether a blanket order under section 708.510 is appropriate. The case involved the issue of, among other things, whether a foreign government agency was entitled to immunity from execution on its assets located outside the United States. "A case is not authority for a proposition not considered therein or an issue not presented by its own particular facts." (*McConnell v. Advantest America, Inc.* (2023) 92 Cal.App.5th 596, 611.) On May 22, 2026, Creditor submitted a supplement to this motion in which it seeks to add an additional entity as a payment source based on information recently received showing Ms. Finger purportedly holds, and/or has signatory authority and control over a Bluevine business checking account maintained in the name of the additional entity. (See ROA 94.) Given Creditor failed to establish Debtor and Ms. Finger are married or when they were married, as discussed above, Creditor also failed to show this new entity should be added as a payment source. Moreover, statements on information and belief are not sufficient to meet Creditor's evidentiary burden. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. **<u>Motion No. 2: Motion for Charging Order</u>** Creditor moves for an order charging Debtor's interest and the interest of his spouse, Ms. Finger, in the same limited liability companies as identified in the motion for

		assignment order, pursuant to Code of Civil Procedure section 708.310 and Corporations Code section 17705.03. Creditor submitted the same declaration in support of both motions. (See ROA 83 and 88.) The motion for charging order fails for the same reasons discussed above in connection with the motion for assignment order. Based on the foregoing, the motion is **DENIED WITHOUT PREJUDICE**. Counsel for Creditor is ordered to give notice of these rulings.
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